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Mr. Piero A Bugoni Pro - Se  
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Boca Raton FL 33432

IN THE UNITED STATES DISTRICT COURT  
IN AND FOR THE NORTHERN DISTRICT OF CALIFORNIA

Global Nurse Force et al.  
PLAINTIFFS

Case No.: 3:25-CV-8454

vs.

**MOTION TO INTERVENE  
AS CO-DEFENDANT**

Donald J Trump et al.  
et al.  
DEFENDANTS

**NOTICE OF CONSTITUTIONAL  
CHALLENGE**

Movant, Piero A. Bugoni moves This Court to allow intervention Per FRCP Rule 24 as a party Co-Defendant to challenge Plaintiffs' complaint.

Movant has interest in this matter because he engages in commerce by providing services to customers and employers that are classified as specialty occupations under SOC 15-1200. Movant engages in that commerce both as an employee of employers and by and through a single-person small business corporation. As an employee, movant has been displaced by the colossal abuse of the H1B Visa program committed by companies that engage in Gross Fraud and Cheating for profit by exploiting the H1B Visa system. Both he as an employee and the corporation he operates are interfered with engaging in commerce by a pattern of Wire Fraud, Visa Fraud, Immigration Fraud, Money Laundering, Human Trafficking, False Pretenses, and Gross Fraud and Cheating that are committed by companies unlawfully exploiting the H1B Visa system for profit.

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Additionally, as a freelance H1B Visa Fraud detector who investigates LCA Disclosure Data and other public records to detect fraud as in Exhibit 2, Movant has a profit interest in challenging Plaintiff's Complaint as the \$100,000 Visa fee will provide the revenue to pay Movant for evidence submitted as in Exhibit 2, or additionally to pay Movant on a contractual basis to detect fraud for the purpose of prosecuting the offenders who commit it.

As Co-Defendant in this matter Movant pleads in response to Plaintiff's Complaint as follows:

Plaintiff's Factual allegations:

Movant does not dispute paragraphs 81 – 86.

Paragraph 87:

Movant disputes that the \$100,000 fee is a penalty. It is a permit fee set at the cost of providing necessary services to detect and prevent the fraud and abuse committed by Indian scammer IT Staffing agencies.

Paragraph 88:

Movant disputes that the H1B Visa program contributed to any net productivity in the U.S. Economy, during any period of time. American workers would have produced the same results. Plaintiffs show no proof whatsoever that H1B workers generate more jobs than they take. Plaintiffs collectively represent many parties, and have not produced even one affidavit from a single party that claims any such benefit.

Paragraph 89:

The same goods and services would have been bought by Americans doing the jobs given to foreign workers. No net gain. Plaintiff admits that they pay H1B workers less, because if they had to pay prevailing wages, it would force them to offshore work, to continue to make

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their margins.

Paragraph 90:

The Executive Branch is not required to give explication when it comes matters of prosecuting fraud and abuse. The fraud and abuse taking place includes criminal activity and RICO violations. It is customary for law enforcement not to tip off criminals as to their knowledge of those criminals conduct. Further, Plaintiff's assessment of the abuse is grossly misunderstood. The exact reason that such a small number of Willful Violators have been found is that based on prior Visa fees that fund fraud detection, there has been grossly under-proportioned investigation. Regardless, Plaintiff's complete lack of understanding of the abuse is a definite "skill issue" in that they just don't even get it. To use just one example from the Willful Violator list, "BER-IT", the abuse committed by that company ultimately expands to at least twenty other companies, all phony, with fraudulent websites, and phony business addresses, that filed as many as 5,000 LCAs from 2022 to Q3 2025. (See Exhibit 1). In short, the current "fraud prevention and detection fee", (\$500) is barely enough to detect and prevent one half of one percent of the fraud. To detect and prevent all of the fraud means multiplying that fee by two hundred times. As such the increased fee is exactly in line with the realistic cost of detecting and preventing the totality of fraud and abuse.

Paragraph 91:

As described supra the abuse is in effect a "mass exploit" attack that is for the purpose of flooding the Visa system, to increase the chances of winning the Visa lottery. This is ultimately what is responsible for Plaintiff's inability to obtain Visas. As always, those who cheat take away from those who play fair. Genuine employers who need Visa workers for work directly with and for their companies only file the LCAs they actually need. Literally one per job. But the scammers use extra companies to potentially file hundreds of LCAs for a single job. Because the Visa Lottery is aggregate for all employers as opposed to

segregated by industry sector, this means that for example a direct-employer company that

files a single LCA for a single employee will be vastly outbid by a group of hundreds of scammer IT companies and “body shops” like Plaintiff, filing separate LCAs, again, only for a single Visa. This is why more than sixty percent of LCAs filed are for computer related occupations, and seventy percent of H1B Visas go to people from India. Not because there is a higher commercial demand for them in America compared to other occupations, but because a group of more than 1,000 phony companies incorporated and operated by Indian people are working in collusion with the top Indian IT services companies to file LCAs on their behalf. As such, the fee is necessary to fund investigative and enforcement actions against a complex network of colluding fraudsters, racketeers, and organized criminals.

Paragraph 92:

Again the fee is to pay the cost of detecting and preventing fraud, which is established law as to permit fees. This cost must be paid by the users of the program, not the public as a whole.

Paragraph 93:

Plaintiff admits that administrative remedies exist and as such have no standing to sue. If those remedies are not adequate, then perhaps they may have standing to sue, but only on a case-by-case basis.

Paragraph 94 is Vague and conclusory and fails to state any cause to which Movant can respond.

Paragraphs 95 – 103 are irrelevant and fail to show any cause for this action.

Paragraph 104 is conclusory and fails to state any cause to which Movant can respond.

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Movant disputes Paragraphs 105 – 109 as follows:

Global Nurse Force disingenuously claims that they are a California Limited Liability Company. However, looking them up on the internet shows that they operate from Kerala India. As such, Global Nurse Force is just another Indian scammer staffing agency using a small office in America as a front, but actually operating from India, and scamming the H1B Visa system to profit. Their YouTube bio it describes them as “Headquartered in Southern California, with recruitment and training centers in India...”

<https://www.youtube.com/c/GlobalNurseForce>. It's clear from their own website that their core business is Visa sponsorship. Nothing in the INA was ever for the purpose of creating a market for Visa peddlers, “Visawali”, or staffing agencies to import foreign workers. The H1B Visa Program is at all times for the benefit of the nation as a whole. Any benefits a company obtains from the Program must inure to America as a whole. Those companies must provide goods and services to the market as a whole, not merely to a specific clientele or industry sector.

Because Global Nurse Force operates from India, and is operated by people from India, that means all their credentials are bogus. The standard of filth when dealing with these companies and their people is that everything from them will be false. False pretenses, false credentials, false resumes, false background verification, false education, false paperwork, false experience, false advertising, and so forth. In IT staffing that's bad enough. In health care, it's critical because people's lives depend on the workers' performance. As such, the \$100,000 processing fee operates as a usual permit fee, and like any other, is set at the cost of providing services related to it. In this case because Global Nurse Force is operated from India, and by people from India, each and every worker they place in America must be vetted and fully background-checked. This means not only verification of their *curriculum vitae*, but also how much actual experience they have practicing the trade they have been hired for. This needs to be done by American-born workers in the same occupation, and those people need to be paid. To use common HR parlance, because these people are from

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India, or work for a corporation that is operated from India, that is a huge “Red Flag”. This creates “Issues” with their “Background” and “Concerns” about their “Profile”. And as such, these “Issues” and “Concerns” must be addressed, and doing so costs \$100,000 per person. As such the increased Visa fee is justified, and probably should be more.

Interestingly, however, examining LCA Disclosure Data from 2022 to 2025 Q3, there appear to be no LCAs filed by Global Nurse Force. If they have not filed any LCAs, they cannot obtain any Visas, and as such have no standing. (There are LCAs filed by an employer named “GLOBAL NURSING RECRUITERS INC”, but it is not clear if that may just be yet another front-company possibly fronting for GNF.)

Movant disputes Paragraphs 110 – 119 as follows:

Plaintiff CIR has no standing to sue, as it is not injured in any way by the increased Visa fee. Nor do its members have any standing to sue. Nothing in the H1B Visa Program creates any substantive right for any person to sue for not being able to obtain one. An employer may have standing to sue, but even then has Administrative Remedies available, and must show that the employment offered is necessary or beneficial to America as a whole, and that American workers are unavailable. Mere profit alone is not grounds to obtain a Visa, nor is profit made unavailable by the Proclamation grounds to sue for not being able to obtain one.

Paragraph 120 fails to state any claim by any injured party and as such contains nothing upon which Movant may frame a response.

Movant disputes Paragraphs 121 – 127 as follows:

Global village has Administrative Remedies available and as such no standing to sue.

Movant disputes Paragraphs 128 – 154 as follows:

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These plaintiffs have no standing to sue. Administrative remedies are available. As

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individuals, no party has any standing to sue for not being able to obtain a Visa. As employers, religious organizations might be able to sue against excessive fees as non-profit businesses, but because a specific type of Visa exists for Clergy, there exists no grounds to allow the use of some other type as well. H1B Visa holders do not get to obtain R1 Visas when their H1B term expires, there exists no reason for the reverse to be true.

Movant disputes Paragraphs 155 – 157 as follows:

Plaintiff UAW has no standing to sue. Administrative Remedies are available to its injured members. UAW is not an employer in of its membership, and does not pay their Visa fees. Paragraphs 155 – 157 fail to state any claim upon which relief may be granted. Paragraphs 155 – 157 fail to name any specific injured party. Vague hearsay references to one member, or some other member, do not create a party plaintiff, nor state a claim.

Movant disputes Paragraphs 158 – 160 as follows:

Plaintiff AAUP has no standing to sue. It is not an employer of its membership. It does not pay their Visa fees. Injured members have Administrative remedies available. Paragraphs 158 – 160 fail to state any claim upon which relief may be granted. Speculative injury is not cause of action.

Movant disputes Paragraph Paragraph 161 as follows:

Plaintiff has no standing to sue. No individual has any standing to sue for their employer not being able to obtain a Visa. She can train her replacement. Her employer can find suitable candidates from the student body, or faculty of whatever university is sponsoring her, and she can transfer her knowledge to them. She can do this from India. Further, this Plaintiff should be dismissed for failure to file eponymously, or for having filed pseudonymously without leave of The Court. Additionally by her own claim, this Plaintiff has forfeited all consideration for a Visa, much less any exception to the \$100,000 fee. By her own

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admission she is now a “basket case” because of the Visa fee Proclamation. Certainly if she

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is unable to continue to do her work, there is no reason to employ her. And, because by her own admission her work is of such a niche character, there are no other jobs for which she should be granted a Visa, and must as such return to India. In short, if she is unable to work in America in specialty occupation for which American workers cannot be found, she must return to India. As to her claims of her supposed condition, "PTSD" is a normal condition that everybody has, and as such it should be subtracted from the equation. When something bad happens to a person, it causes them to experience stress. That is a normal condition. For Males, the stress experienced is typically a linear function of the trauma experienced, that is reduced quantitatively by a Man's Testicular Fortitude. That is, the greater the trauma, the greater the stress experienced, but the total stress experienced is reduced by a Man's indifference to the supposed trauma itself. That is, something is neither traumatic nor stressful if a person does not give a fuck about it in the first place. With Females on the other hand, the stress experienced is an absolute function where any trauma whatsoever causes infinite stress to them, and to anybody and everybody around them. However, it is worth noting that in some cases at least, female-experienced stress can be mitigated by a tub of ice cream, or perhaps buying jewelry or shoes, and of course, Dick. Regardless, for the purpose of assessing any harm caused to this Plaintiff by the Visa fee Proclamation, this Plaintiff's pre-existing condition must be disconsidered. The Proclamation did not cause this Plaintiff's PTSD. It may be that the Proclamation added something on top of that, but it is only that extra amount that matters for the purpose of this case. While there is usually a presumption that a person is to be treated "as they are" when assessing damages, as opposed to some hypothetical standard, (the "Eggshell-Skull" rule), because Plaintiff's have certified that they do not seek damages, then any harm claimed by this Plaintiff is irrelevant. What is relevant however is that by her own admission this Plaintiff is unable to do her work. In the end measure, the H1B Visa Program is about just that. Work. Foreign workers bring their high-value specialty-occupation skills to America to provide benefit to Employers that inures to the Nation as a whole. If a minor disruption of her life like in the instant case makes her unable to do her work, she is not that valuable of an employee. If instead of

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yelling and screaming, becoming hysterical and abusive, blaming everybody else for her misery, and becoming vindictive, she instead took the time to think the situation through, as a Male would, it would have occurred to her that Administrative Remedies were available, and that her work might qualify for a “national interest” exemption. Further, there are other options available. Since she must have brought her high-value specialty skill with her from India to have been given a Visa in the first place, this means there must be some institution in India where she can continue her work. If not maybe she can work a deal with her employer to continue her research from India. That would offer a cost savings to her employer because they could then pay her Indian prevailing wages instead of American prevailing wages. Instead, she tried to use a “sympathy ploy” as grounds to vacate the Visa fee Proclamation. That is lame as fuck. As though because of her personal problems all the rest of us should have to continue to allow Indian scammers to steal all of our lucrative jobs from us and pollute our job market with phony job offers, phony front companies posing as staffing agencies, ghosting, and fourth-party Indian deals. Ridiculous. For the same reasons that one does not present their personal problems to a potential employer during a job interview as grounds to get hired, what she should have done is show cause that her work is beneficial to mankind, highly-specialized and particular to the point that she may be one of very few people on the planet that know how to do it, if not the only one, and that she has made substantial progress in her work to the point of demonstrating its ultimate validity as cause to vacate the Proclamation in *her case*. Instead, what she did is make it “about her”, and she is no reason whatsoever to vacate the Proclamation in *any case*.

#### Count 1

For all of the reasons stated supra, Plaintiff's Count 1 should be dismissed.

#### Count 2

For all of the reasons stated supra, Plaintiff's Count 2 should be dismissed.

**Constitutional Challenge To The H1B Visa Program As Applied:**

The H1B Program as-applied violates the Rights of Americans as follows:

**Peace and Dignity:**

It offends the Peace and Dignity of every American worker to have foreign corporations operating on American soil illegally claiming they cannot find American workers to fill jobs, in order to import foreign workers, and give those jobs to them.

It is an offense to the Peace and Dignity of every American to have foreign corporations start or assist with starting more than 1,000 domestic corporations, and staff them with foreigners for the purpose of colluding to illegally claim that they cannot find American workers in order to traffic foreign workers to foreign corporations displacing American workers in America.

It is an offense to the Peace and Dignity of every American for corporations foreign and domestic to collude for the purpose of engaging in anticompetitive business practices, market-rigging practices and market cornering practices, to displace American workers and take business away from American companies, in America.

**Life:**

The Right to Life includes the quality thereof. By stealing an entire market of lucrative jobs, and businesses, Indian scammers have deprived Americans of that lucre, and the quality of life it brings.

**Liberty:**

The Right to Liberty includes Liberty to Contract, and the Liberty to pursue a career. That

Liberty has been stolen from American workers by a concerted effort of thousands of Indian

scammers acting as phony employers, and using fraudulent LCA Filings to direct Jobs from American companies for American workers instead to foreign workers disproportionately, exclusively, and permanently.

#### Property:

Property is anything of value. Value is the object of any human desire. Petitioner among hundreds of thousands of Americans similarly situated desire to profit, pay their expenses, provide for their families and for their elderly years. Those are all items of Property. The H1B Visa program violates American Rights to that Property by creating an avenue for Indian scammers to take that property away from Americans, as described in this Petition.

#### Commerce:

The H1B Visa program Violates Americans' Right to Engage In Commerce because it creates an avenue for Indian scammers to engage in anticompetitive, collusive, and monopolistic business practices, as described in this Petition, and those business practices displace American workers and interfere by a pattern of wire fraud, bribery, ID fraud, citizenship and naturalization fraud, obstruction, Visa fraud, immigration fraud, human trafficking, and other RICO acts, with American companies pursuing and profiting from interstate and foreign commerce.

#### **Constitutional Challenge To 8 U.S.C. § 1182(n), 8 U.S.C. § 1184(i)**

The H1B Program is enabled by statute, specifically 8 U.S.C. § 1182(n), and is regulated by 20 CFR § 655. “Specialty Occupation” is defined by 8 U.S.C. § 1184(i).

The enabling statute is overbroad because it lacks language necessary to prevent the colossal fraud described herein. As such it allows application far beyond the scope of its stated objective, and as described herein, its extra breadth is used to commit fraud and other offenses both civil and criminal.

8 U.S.C. § 1182(n) is a clear violation of Separation of Powers in that it repeatedly mandates the official duty of the Secretary of The Department of Labor and The Attorney General. The language of that section is not merely “congressional oversight” but congressional overreach. That section repeatedly states: “the Attorney General shall...”, and “the Secretary shall...”. This is a clear violation of the separation of powers. “Shall...” in legislation means a mandatory act. What is the penalty for disobedience of those mandates by those officers? What authority does Congress have to order about Executive Branch officers? In all cases the final decision to act in official capacity is by the individual person holding that office, because they are individually liable for wrongdoing. (Not Congress). In all cases those persons have both a Right and a Duty to refuse illegal or unconstitutional orders. Section (n) attempts to circumvent that by legislation. As such it legislates away an officers Right and Duty to refuse, as well as their discretion, which Congress has no authority to do, regardless of which office it attempts to legislate.

As such, because by Section 1182(n) Congress literally attempts to run the Executive Branch, that section is in no way a check on the conduct of the Executive Branch, nor a balancing of Congressional authority with regard to that of the Executive. Instead Congress legislated the official conduct of the Secretary of Labor, and Attorney General, instead of leaving that to Executive authority. Nothing in The Constitution of The United States gives Congress the authority to do so.

Void for vagueness: Section 1184(i) can be read with multiple distinct meanings, with regard to the qualifier, “(or its equivalent)”, to its preceding phrase of “attainment of a bachelor’s or higher degree in the specific specialty“. It is not clear whether it refers to the “equivalent” of a Bachelor's Degree, or the “equivalent” of a given “specific specialty”. Each reading seems equally sensible, in that Congress may have intended to not limit the definition of “Specialty Occupation” to only those requiring a Bachelor's Degree to enter, but also to include those that may accept or require other equivalent forms of education or

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prior training to enter, while also allowing for some equivalence between specialties, so that prior training or education in one specialty can be considered equivalent to that toward some other specialty. Both are realistic scenarios. There exist multiple equivalent training and education curricula to Bachelor's Degrees, including *curriculum vitae*, in se, while at the same time occupational specialties are not discreet entities, but exist across a broad spectrum, with wide overlap among them.

However, it appears that Congress did not intend to include both scenarios, or the qualifier would have been “(or their equivalents)”.

Because Section 1184(i) can be read multiple ways that are equally sensible but completely different, and there exists no way to determine which was intended by Congress, that is unconstitutionally vague.

The “H1B Program”, as a whole, enabled by the statutes challenged, among others, violates Rights of Americans as described supra, and as such is unconstitutional as-applied. Further, statutes that violate Fundamental Rights, or that direct state officers to do so are unconstitutional on their face.

### **Constitutional Standards Of Review:**

#### **Strict Scrutiny:**

There exists NO COMPELLING OBJECTIVE whatsoever for the “H1B Program”. To that end the burden of proof is upon , and Respondent must show the Compelling Objective. Failure to show a Compelling Objective therefor voids any statute, regulation, policy, or custom that violates Fundamental Rights.

Less restrictive alternatives exist:

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a) Business sponsored scholarships are tax-deductible, and can easily supplant the

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importation of foreign workers. Simply because a company can't find a worker does not mean they cannot create one.

b) Remote work. Given the advent of remote work, the potential talent pool available to employers increases exponentially. Claims of inability to find American workers within a given "ordinary commute distance" fail when American workers can attend from anywhere in the world at anytime.

**Rational Basis:**

Arbitrariness: There is nothing more arbitrary than a lottery. To the stated objective of the law, the individuals selected should be selected by aptitude, not random chance, and their aptitude should be determined by American workers already present at the sponsoring employers, occupying the same specialty for which the LCA was filed.

Caprice: The capricious nature of the program is a product of the caprice of its users, who either somehow believe or have the attitude that American workers are inferior. Further, the statute as applied, at least toward occupations classified in SOC 15-1200, is capricious because it is in no way connected to actual reality. It is not 1990. The Internet is no longer in its nascence. Computer related everything is commonplace. There is no lack of experience nor expertise by American workers in that occupation. Further, there exists no basis in reality that India is capable of producing people talented at anything that is not available from American workers. India's per-capita GDP is approximately \$2,700. American per-capita GDP is more than \$85,000. India's population is approximately four times that of America, yet their total GDP is only around \$3.9 Trillion. America's GDP is over \$29 Trillion. India is a third-world shithole. Its streets are paved with dirt, there is no real hygiene, the place smells of feces and sewage, street traffic is unregulated and crowded, there is no sanitation enforcement for food preparers, and organized crime operations are allowed to proliferate, setting up call centers that scam American Elderly People out of their life savings, to the tune of hundreds of millions of Dollars per year. Yet people from India

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get seventy percent of H1B Visas. Why? Because scamming is the one thing people from India excel at, and as such they have scammed This Country out of its best jobs, the way they scam everything else. The idea that America needs people like that for any reason, is pure caprice.

For all the foregoing reasons, This Court should grant Movant leave to intervene herein, and dismiss all of Plaintiff's claims with prejudice.

Submitted to the Court, This 6 November 2025.

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Mr. Piero A. Bugoni, Movant Pro - Se

Certificate of Filing:

The Original of This Document was delivered to the Court on 6 November 2025, by Movant via United States First Class Mail.

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## EXHIBIT 1

### Free Press Publications:

Movant gives this Court Judicial Notice of the following free press publications in aid of its Jurisdiction in this matter:

“reddit” Communities where facts relevant to this claim are published openly in the Free Press, and viewed by hundreds of thousands of American workers:

<https://www.reddit.com/r/AmericanTechWorkers/>

<https://www.reddit.com/r/StopH1B/>

<https://www.reddit.com/r/CSCareerHacking/>

<https://www.reddit.com/r/SoftwareEngineerJobs/>

<https://www.reddit.com/r/H1BVisaFraud/>

Two well respected scam busters with thousands of hours of time and effort between them exposing and thwarting Indian scammers discuss how these scammers exploit systems in the same manner that is used to exploit the H1B program:

<https://youtu.be/7zXMPzCrInc?t=4689>

The trajectory of H1B fraud by Indian scammers over the years:

[https://www.pewresearch.org/wp-content/uploads/sites/20/2025/03/SR\\_25.03.04\\_h-1b\\_3.png](https://www.pewresearch.org/wp-content/uploads/sites/20/2025/03/SR_25.03.04_h-1b_3.png)

Note the distinctive inflection point around 2008 followed by a positive slope.

Senator Sanders discussing the disproportionation of H1B Visas to “India Focused” IT Firms:

[https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie\\_sanders\\_warni ng\\_us\\_about\\_h1b\\_visas\\_17/](https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie_sanders_warni ng_us_about_h1b_visas_17/)



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“How an Army of Middlemen Game the US Work Visa System”

[https://www.youtube.com/watch?v=p\\_jjJMoPHVA](https://www.youtube.com/watch?v=p_jjJMoPHVA)

A report by Bloomberg Originals regarding the circumstances described herein.

Indian scammers discussing how IT staffing companies scam the H1B Visa system to obtain sixty-five percent of the Visas issued:

<https://www.youtube.com/watch?v=u2lAhknQrsk>

Indian Journalists discussing the H1B scam in great detail:

[https://www.youtube.com/watch?v=CMfTZhp\\_vK4](https://www.youtube.com/watch?v=CMfTZhp_vK4)

Two articles about “Degree Mills” in India:

[https://www.reddit.com/r/hyderabad/comments/18vr2p0/ameerpet\\_in\\_hyderabad\\_the\\_go\\_to\\_zone\\_for\\_aspiring/](https://www.reddit.com/r/hyderabad/comments/18vr2p0/ameerpet_in_hyderabad_the_go_to_zone_for_aspiring/)

[https://www.reddit.com/r/hyderabad/comments/1lsfesr/why\\_are\\_so\\_many\\_people\\_having\\_fake\\_experiences\\_or/](https://www.reddit.com/r/hyderabad/comments/1lsfesr/why_are_so_many_people_having_fake_experiences_or/)

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**EXHIBIT 2****LCA Disclosure Data Investigations By Movant:**

The following investigation of LCA Disclosure Data is presented herein in support of this Motion, and in specific opposition to the moronic and ignorant claim made by Plaintiffs in Paragraph 90 of their Complaint.

Investigating one previously known WILLFUL\_VIOLATOR, Srinivasa Reddy Kandi, is documented in this YouTube video:

<https://www.youtube.com/watch?v=WWPx-9tNn-w>

The above video describes thousands of LCAs filed, ALL on behalf of entirely non-existent companies, claiming some of the largest corporations in the market as their clients. All of the phony front companies in this video are registered to multiple parties at a single residential address, 6688 EXCELSIOR PL, FRISCO TX. There is one record in the LCA Data with that same address listed as the WORKSITE\_ADDRESS:  
EMPLOYER\_NAME: ABSOLUTE INFORMATION TECHNOLOGIES.

Searching the LCA Data for either EMPLOYER\_NAME or SECONDARY\_ENTITY\_BUSINESS\_NAME matching ABSOLUTE INFORMATION TECHNOLOGIES, reveals ninety-three records with ten of them being associated with TekOrg. Doing the same search for TekOrg reveals 2,325 more records, where the majority of them have the exact same JOB\_TITLE. When a SECONDARY\_ENTITY is defined in the records for TekOrg, many of them are just yet another Small House IT Company, (SHITCO).

One address for TekOrg resolves to a residential apartment that may or may not be occupied, (1326 E Algonquin Rd, Apt 2E, Schaumburg IL), but is certainly not occupied by the 1,618 beneficiaries of the LCAs that were filed by TekOrg with that location as the

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WORKSITE\_ADDRESS. All of those LCAs have the same JOB\_TITLE, and all of them have SECONDARY\_ENTITIES defined, with most of those being additional SHITCOs, or other IT Staffing Agencies. The total number of LCAs, (2022 – 2025Q3), that have been filed with a WORKSITE\_ADDRESS at that apartment is 1,628. Five of the additional ten beyond those filed by TekOrg were filed by COGNIZANT TECHNOLOGY SOLUTIONS US CORP. This reveals a nexus between Srinivasa Reddy Kandi, and COGNIZANT, a large IT Services provider, incorporated in New Jersey, and operated by Indian nationals.

Moreover, of the 2,023 total LCAs filed by TekOrg listing that apartment as the EMPLOYER\_ADDRESS, 387 of them list “1st Ave North of Cermak Rd, Hines, IL” as the WORKSITE\_ADDRESS. (A non-fixed address, that is a one-mile long stretch of road on the west side of 1<sup>st</sup> Avenue, from Cermak Road, North to Roosevelt Road). No SECONDARY\_ENTITY\_BUSINESS\_NAME is shown for the LCAs at this WORKSITE\_ADDRESS.

Another address used by TekOrg as both EMPLOYER\_ADDRESS and WORKSITE\_ADDRESS is 312 S Finley Rd, Apt 3K, Lombard IL. This is also a residential apartment that appears to be owned by the same property management company as the Algonquin Road property. There are two-hundred LCAs filed with this apartment listed as the EMPLOYER\_ADDRESS, and all but one list it as the WORKSITE\_ADDRESS as well. The remaining one uses the Cermak Road address mentioned supra.

Synechron Inc. – New York City

Excessive LCA filings. More persons than might actually be able to occupy their office. Contacted EMPLOYER\_POC, to verify Labor Conditions for those LCAs. He claimed he was driving and could not talk. He agreed to take the call a half hour later. Called back multiple times, no answer, directed to voicemail, which was full. Petitioner contacted a

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messenger service in NYC to see if they could go to the office location to determine if there

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actually was an active business there. That building does not allow persons to deliver directly to offices, but instead to a messenger center on the ground floor. For now, Petitioner is unable to determine Labor Conditions at that location, or if there even exists a valid business at that location.

#### Office Depot – Boca Raton Florida

Numerous LCA filings but no corresponding jobs on their website. Contacted EMPLOYER\_POC, Jamila Paradas. That POC refused to disclose anything from their Public Access File, or assist with verifying Labor Conditions at the worksite, and ended the call. Petitioner filed a complaint with U.S. DOL WHD.

#### Majestic IT – Boca Raton / Deerfield Beach Florida

Went to both locations listed in LCA Disclosure Data. Boca Raton location was occupied by another tenant. Office was small, no more than two persons could work comfortably. Left LCA Review / PAF Challenge request with contact information under door. Majestic IT filed for eighteen LCAs at this address. At the Deerfield Beach location the office was leased to Majestic IT, but no one present. Again, office appeared to be for two to three persons, not the thirty-three for which LCAs were filed. Petitioner likewise left a request for Labor Condition documents under the door. Majestic IT replied on 24 September 2025 that no American workers applied to the corresponding Jobs.

#### JM Family Companies – Deerfield Beach Florida

No LCAs filed at all. Not typical of larger companies that employ foreign workers via outsource. Typically they will have one or more LCAs filed in their own name. In this case all LCAs filed for persons placed at JM Family Companies are filed by others, with JM Family Companies shown as the SECONDARY\_BUSINESS\_ENTITY. Two-hundred fifty-one since 2022. Most by SHITCOs, two filed by Accenture, two by Capgemini, twelve by Compunnel. Most likely this is because JM Family Companies is an automobile-industry

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company. If they hired foreign workers directly they would have to give notice to existing employees, who may be unionized. JM Family Companies is able to skirt this obligation by using other entities to provide foreign workers.

510 Franklin Ave, Nutley NJ – A High Tech Mecca

This nondescript, former early 20<sup>th</sup> Century theatre in Nutley New Jersey has seven businesses, all SHITCOs, sharing eight small suites, who claim the biggest names in industry as their clients, and collectively filed six-hundred one LCAs since 2022. Petitioner sent an inspector there and there appears to be nobody present at that address. Petitioner contacted the property manager, and the property manager claimed that the suites were actually occupied, but that he did not know who the tenants were. All LCAs associated with this address were filed by the John Boudia Law Firm.

KForce – Multiple possible violations of law, civil and criminal, including RICO

KForce uses illegal background checks to disqualify American workers. They use prior criminal convictions as cause to PERMANENTLY remove those persons from consideration. These background checks are illegal because KForce deliberately does not provide adverse-action notice to persons prior to taking adverse-action against them on basis of the background check report, but rather immediately and permanently blacklists them, so that they can claim that they cannot find American workers. KForce uses false offers of employment, (false pretenses), to run background checks on people, so they can permanently disqualify them, and then claim that they cannot find American workers. KForce illegally runs background checks on persons who are not its employees, again to disqualify American workers and contractors, as described infra.

On 22 September 2025, Petitioner Received a solicitation from ConvexTech Inc for a remote role with KForce at UMMS In Maryland. (University of Maryland Medical System).

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The email Petitioner received suggested that the actual employer would be UMMS. Later

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while speaking to a person located in India, that person claimed KForce would be the actual employer. The job did not appear anywhere on the UMMS Jobs website, nor the KForce jobs website. Petitioner contacted KForce by phone on 23 September 2025, and was almost unable to get through to anyone. None of the phone numbers advertised by KForce ever ring through to a human being. Eventually, Petitioner got through to a “help desk”. The agent claimed that there was “no way” that she could verify that the job was real, nor that ConvexTech was an actual vendor to KForce, nor that the solicitation from ConvexTech on behalf of KForce was actually legitimate.

Maryland state agencies and Universities have filed more than two thousand LCAs in the past three years. Maryland is a known region for people from India to immigrate, and form SHITCOs. Searching for ConvexTech in the LCA Database reveals that their EMPLOYER\_ADDRESS resolves to a small Regus™ virtual-office or shared office, and that for the thirty-one LCAs filed in the past three years, by ConvexTech, twenty-seven of them are for a single SECONDARY\_BUSINESS\_ENTITY. (This is one indicia of fraud). That client is CyberMart LLC. The LCA Disclosure Data shows three separate WORKSITE\_ADDRESS locations for CyberMart LLC. Two of them resolve to vacant lots in Texas, (certain indicia of fraud), the third resolves to a Regus™ virtual-office or shared office. As for the online inventory of CyberMart, it is around fifty items per category. None of those items are unique, original, or extra-ordinary, and all of them are exactly the sort of items that stock the shelves of thousands of small independent grocery stores, “bodegas”, neighborhood markets and convenience stores around the country, and are readily available from distributors like McLane, and Core-Mark. Additionally, CyberMart on its website also solicits independent sellers to use CyberMart's online platform to sell their own products, and claims to offer “Free Registration, Free Marketing, Zero Transaction Fees, No Commission, Free Product Optimization”. This is suspicious because what CyberMart is supposedly offering for free, is what ALL other online selling platforms charge money for, to earn the revenue that sustains the business, and yield a profit margin. This suggests that

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the money funding this business is coming from somewhere else, and as such, CyberMart is a front for money-laundering.

Additionally, when testing the CyberMart online market by attempting to purchase a jar of Mayonnaise, Petitioner discovered that upon proceeding to checkout, the website prompts the purchaser to create an account by entering an email address. It then prompts the user to enter a "One Time Password", (OTP), that was sent to the user's email, with a fifteen-second time-out! This is absolutely out of norm for such systems, and makes it almost impossible to actually purchase anything. After managing to successfully play "Beat The Clock", and getting through to the shipping details screen, and entering contact information, the user is then prompted again to enter another OTP, that is sent this time via SMS to the user's phone, again with a fifteen-second timeout! Since the phone number Petitioner entered was like that for movies, (555 prefix), he has no knowledge as to whether the text message would be received in time to actually complete a purchase, and based on the fraudulent nature of that website, Petitioner was reluctant to enter any of his actual personal or financial information like a phone number or credit card number.

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When viewing the shopping cart page for the CyberMart online market, during the purchase process, it showed the selected item as being "In Stock", but below the "Proceed to Checkout" button it makes the disclaimer that "Item availability and pricing are not guaranteed until payment is final." Again, suggestive of fraud. Finally, upon dialing the phone number shown on the site to contact them, it rang through to the personal phone of an unknown individual, not to any kind of business location, and that person had no knowledge of that phone number ever being associated with CyberMart, much less any knowledge of CyberMart at all. That person spoke clear American English as someone who had their entire life, with no foreign accent. Based on the practical unusability of CyberMart.com, a bogus phone number, the LCAs filed for CyberMart, the company that filed them, and its association to KForce, it is almost certain that CyberMart.com is a front, designed so that its

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operators will never have to ship any goods, and instead the phony company operating it is used for other things like money laundering, wire fraud, or other RICO acts related to Visa procurement, and immigration.

KForce has made it publicly known that Petitioner is permanently barred from employment and business with them. Petitioner has brought legal actions against KForce in the past and in their pleadings they have unequivocally stated that they will not hire Petitioner. In this instance after responding to the solicitation from ConvexTech, and contacting their agent by phone, who was physically located in India, Petitioner replied to the email he received, requesting submission for the role. At this point in the application process, in ALL other cases, the soliciting party sent a "rate confirmation" email, which petitioner confirmed by reply, and then the soliciting party at least claimed they were submitting Petitioner's application to the hiring party. In this case, the party contacting Petitioner stated that he would submit Petitioner's Resume to the manager, and get back to Petitioner. In Indian scammer IT Staffing parlance, forwarding something to a manager is a euphemism for doing nothing.

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In two prior recent instances, Petitioner was contacted by other parties physically located in India, but claiming to be representing SHITCOs located in America, for roles through KForce, as typical fourth-party Indian deals. In the earliest of the two, Petitioner simply skipped these interloping parties entirely, and attempted to contact the end client directly by phone, but no one ever answered or called back. Petitioner submitted a Vendor Application to them on behalf of his corporation, but never received any response. The employer in that case was Corewell Health, who has filed 157 LCAs on its own behalf, since 2022, and has an additional 30 filed on its behalf by SHITCOs. The later of these two prior instances involves an employer in Petitioner's "ordinary commute distance", AutoNation, which has filed thirty-seven LCAs on its own behalf, since 2022, with an additional seventy-seven filed on its behalf by mostly SHITCOs, but also by Tata Consultancy Services and Compunnel.



Petitioner will ultimately be doing a Labor Conditions Review and PAF Challenge for those LCAs.

In both of these instances, the offshore “recruiter” claimed that Petitioner would be working as an employee of the fourth-party company soliciting for KForce, or could work as a “Corp to Corp” contractor to them if Petitioner operated a corporation. But, Petitioner was told that in both such instances KForce would be running a background check on Petitioner, and submitting it to the end client. It is a violation of the FCRA for KForce to run an employment-purposed background check on a person who is not, nor will be an employee of KForce, and it is a violation of the FCRA for KForce to unlawfully act as a Consumer Reporting Agency by furnishing a background check report relating to a particular person to a party that has no relationship whatsoever with that person. KForce engages in these unlawful background checking practices to permanently disqualify Americans from employment, in order to profit from its Visa sponsorship business, as described infra.

Because by its own policy there was no reason for KForce to contact Petitioner in the first place, it appears that KForce is using its blacklist deliberately to claim that they contacted American workers, but none are employable, in order to give the role to current H1B Visa holders under its employ who are currently “benched”, (i.e. between assignments), or for whom KForce has otherwise previously received a Visa. The reason for this is that as a Visa sponsor, KForce is obligated to continue to pay prevailing wages to its Visa beneficiaries even during down time, and by its own count has successfully processed 38,000 Visa cases. This is substantiated as follows:

KForce claims that it ranks in the top 1% for Visa Sponsorship in the U.S., and that all of its consultants are W-2 employees.

<https://www.kforce.com/solutions/international-talent-solutions/>

KForce openly advertises itself as a Visa sponsor:

<https://www.kforce.com/find-work/visa-sponsorship-solutions/>

KForce offers, or claims to offer comprehensive assistance of various types to foreign workers including:

- a) Visa Remediation: (“addressing” and “resolving” “even the most complex visa issues to ensure successful engagement”), and;
- b) Direct marketing of candidates to end clients, and;
- c) Consultant Redeployment: “Before your current assignment ends, our redeployment team of experienced staffing specialists are already working to find your next opportunity.”

These are services that KForce never provides to its American workers.

During a previous investigation of KForce, Petitioner contacted them as a client, and spoke to an account manager to request a computer programmer for an entry-level programming task which many Americans offer publicly on Craigslist, Freelancer, and UpWork. During the conversation, the account manager acknowledged that KForce runs background checks on all persons it places at clients, and stated that if such persons have criminal records, “we don't ever deal with them again”. Finally in that conversation, when Petitioner asked about the possibility of obtaining a foreign worker, that account manager stated that it “could be arranged”. At no time did that person ever state that it would only be possible if an American worker could not be found.

Additionally, in one of the LCAs filed by TekOrg mentioned supra, KForce Inc. is listed as the SECONDARY\_ENTITY\_BUSINESS\_NAME, at the supposed worksite in the Algonquin Road apartment.

## ICCS / iContentSAAS

Listed as SECONDARY\_BUSINESS\_ENTITY in one hundred forty-one LCA filings since 2022, company headquarters is 9250 W Bay Harbor Drive, Unit 7C, a condo in Miami area. This business is listed as a secondary entity by EMPLOYER companies that are suspect, including one known fraud, QUANTUM TECHNOLOGIES LLC, a Srinivasa Reddy company. All LCAs filed with ICCS as a Secondary Entity, claim beneficiaries will be working remotely for that entity.

This business entity is suspect because:

- i.) It is associated with Srinivasa Reddy Kandi.
- ii.) Its headquarters location is not zoned for business, but is residential, and operating a business from that residence is almost certainly a violation of the HOA rules in that community.
- iii.) The WORKSITE\_ADDRESS shown in the LCAs where ICCS is a Secondary Entity, is that of the EMPLOYER company. The number of LCAs filed for these worksite addresses appears to exceed the occupant capacity for those locations.
- iii) It is highly unlikely that at 9250 W Bay Harbor Drive, Unit 7C, there exists any kind of data center, or business, that others would be remotely logging in to, from the WORKSITE\_ADDRESS, or that would be using any software, or any kind of technology product produced by workers at the WORKSITE\_ADDRESS, much less be using the work product of one-hundred or more people.
- iv) In a worst-case scenario if there is such a telecommunications hub there, it may be in use for criminal purposes, or espionage purposes. The advantage of that location is that a warrant is required for entry, whereas anything rented like ordinary business locations could be accessed by permission of the landlord. The community itself is very low-key with typically only older people ever allowed to live there, and units that may only be used as vacation or winter homes by some residents. Almost certainly a place where people mind their business and live quietly, and the police rarely ever have to go.

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Again, this business is likely a front of some kind, possibly money-laundering, or worse.

### Remote Work

The LCA Data Show at least 37,000 LCAs filed that indicate remote work to various Secondary Business Entities. As a class, these are likely fraudulent. For an Employer to claim they need to import a foreign worker to move to America, to establish a residence anywhere in the country, to work from home, is highly suspect.

However, a remote-work exploit that is commonplace and has been recorded to some extent at least in Federal Cases against the “Bollywood” companies, is that the actual persons using Visas to stay in America have no Specialty Occupation skill whatsoever. They are literally placeholders. The actual work is being done by persons in India, because by its nature, (Software Development), it can be produced and delivered remotely. Ultimately the Secondary Entity receives a person at their Worksite who has no qualifications at all, but fronts for a team of developers offshore.

Here is the math:

The top ten offshore IT Services Companies, (“Bollywood”), using SHITCOs as fronts are:

- i) Tata Consultancy Services, an Indian Corporation.
- ii) Cognizant, incorporated in New Jersey where identity of corporate officers is not publicly disclosed, incorporated and operated predominantly by Indian nationals.
- iii) Infosys, an Indian corporation, U.S. Headquarters in Richardson Texas.
- iv) Capgemini, incorporated in France, with a large Indian workforce in India, used to traffic Indian nationals into American Jobs.
- v) LTIMINDTREE incorporated in New Jersey, formerly operating as Larsen and Toubro.
- vi) HCL, Indian company with U.S. Headquarters in Sunnyvale California.
- vii) Accenture, Irish corporation, used to traffic Indian nationals into American Jobs.

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- viii) WiPro, incorporated in New Jersey, operated by Indian nationals.
- ix) Compunnel. incorporated in New Jersey, operated by Indian nationals.
- x) Tech Mahindra, part of Mahindra Group, an Indian company, with American headquarters in Plano TX.

Literally these ten companies are served by more than one thousand “Visawali”. That is, just over 1,000 SHITCOs list one or more of the above companies as the SECONDARY\_ENTITY\_BUSINESS\_NAME in their LCA filings. What this means is that by using more than 1,000 other companies to front for them, the top ten “India Focused” personnel companies are able to increase their chances of Visa lottery winning, by three orders of magnitude, while at the same time obscuring the discovery of their fraud by the same factor.

This is deliberate and intentional, and there is evidence to suggest that these SHITCOs that act as “Visawali”, were all funded by the larger IT Vendors for the purpose of exponentially increasing the number of LCAs they can file.

Ultimately, all of this activity is coordinated through a professional association known as the ITServe Alliance, and is assisted by organizations like the South Asian Bar Association.

The totality of circumstances described supra means that some number of LCAs contain wholly false attestations, and based on analysis of LCA Disclosure Data, that number appears prohibitively large. This means some number of Visas were actually issued to persons based on a wholly false LCA, and that those persons are illegally in America now, or on their way to be here illegally since the most recent lottery. The H1B Visa Program is replete with such gross fraud and cheating by Visa sponsors, false pretenses by Visa sponsors, employment law violations by Visa sponsors, and acts by Visa sponsors that are predicate acts of Racketeer Influenced Corrupt Organizations.

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